



DEPARTMENT OF REVENUE

Division of Motor Vehicles

DEFINITION OF NON-RESIDENT FOR THE PURPOSES OF DRIVER'S LICENSE ISSUANCE - Expired 05/15/2009

1 CCR 204-29

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

DEFINITION OF NON-RESIDENT FOR THE PURPOSES OF DRIVER'S LICENSE ISSUANCE

1. Statement of Basis and Purpose: The statutory bases for this rule are § § 42-1-204, 42-2-102(1)(c), 42-1-102(62), and 42-1-102(81), CRS. The purpose of this rule is to include in the definition of "non-resident" under §42-1-102(62), those persons who are working on a temporary or seasonal basis with appropriate documentation from the United States Citizenship and Immigration Services, who do not have permanent resident status, and therefore shall not be considered to have "gainful employment" for the purposes of establishing residency. These non-residents shall be exempt from the requirement to obtain a Colorado driver's license under §42-2-102(1)(c), and shall not be considered to have "gainful employment" unless he or she otherwise meets the definition of resident by either continuously residing within the state for 90 days or more or by owning or operating a business in this state.
2. [Expired 05/15/2009 per House Bill 09-1292]

Editor's Notes

History

Entire rule emer. rule eff. 07/30/2008.

Entire rule eff. 10/30/2008.

Annotations

Rule 2 (adopted 08/16/2008) was not extended by House Bill 09-1292 and therefore expired 05/15/2009.